

25CHCV02439 25CHCV02439

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Case Number: 25CHCV02439 Hearing Date: August 10, 2026 Dept: F49

Dept. F49

Date: 8/10/26

Case Name: Maria Guadalupe Luna vs. Six Flags

Entertainment Corporation; Magic Mountain LLC; and Does 1-50

Case No. 25CHCV02439

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

AUGUST 10, 2026

MOTION TO COMPEL FURTHER

RESPONSES TO SPECIAL INTERROGATORIES; REQUEST FOR SANCTIONS

Los Angeles Superior

Court Case No. 25CHCV02439

Motion filed: 3/11/26

MOVING PARTY: Plaintiff Maria Guadalupe Luna

RESPONDING PARTY: Defendant Magic Mountain LLC

NOTICE: OK

RELIEF REQUESTED: An order from this Court compelling Defendant Magic Mountain LLC to serve further responses to Plaintiff's Special Interrogatories, Set One; and awarding sanctions.

TENTATIVE RULING: The motion is GRANTED. The request for sanctions is GRANTED IN PART.

BACKGROUND

This action arises from injuries allegedly sustained by Plaintiff Maria Guadalupe Luna ("Plaintiff") when she fell from a defective seating wall at Defendants' theme park. On July 10, 2025, Plaintiff filed the Complaint against Defendants Six Flags Entertainment Corporation ("Six Flags"), Magic Mountain LLC ("Magic Mountain") (collectively, "Defendants"), and Does 1 through 50, alleging negligence and premises liability.

On October 31, 2025, Defendants filed their joint Answer to the Complaint.

On March 11, 2026, Plaintiff filed the instant motion to compel Magic Mountain's further responses to Plaintiff's Special Interrogatories, Set One (the "Motion").

At the Case Management Conference on April 8, 2026, the parties were ordered to meet and confer regarding outstanding discovery. Pursuant to that order, on June 29, 2026, the parties filed a Joint Status Conference Report ("Joint Status Report").

On July 28, 2026, Magic Mountain filed an Opposition.

No reply papers have been filed.

ANALYSIS

“On

receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete. (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate. (3) An objection to an interrogatory is without merit or too general.” (Code Civ. Proc., § 2030.300, subd. (a).)

A.

Procedural Requirements

(1)

Timeliness of Motion

A party must bring a motion to compel further responses to interrogatories within 45 days after the responding party serves verified responses or supplemental verified responses. (Code Civ. Proc., § 2030.300, subd. (c).) Parties may also agree in writing to a specific later date by which to file a motion to compel further responses. (Ibid.)

Plaintiff’s counsel attests that Magic

Mountain served responses to Plaintiff’s Special Interrogatories, Set One on January 23, 2026. (Asiryan Decl., ¶ 4.) Proof of service attached to the responses indicates that they were served via email. (Id., Exh. B.) The deadline to move to compel further responses was accordingly March 11, 2026. (Code Civ. Proc., §§ 1010.6, 2030.300.) The Motion, filed on March 11, 2026, was therefore timely.

(2)

Meet and Confer

A motion to compel further responses to interrogatories must be accompanied by a meet and confer declaration under Section 2016.040. (Code Civ. Proc., § 2030.300, subd. (b)(1).) A meet and confer declaration must “state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a).)

“The level of effort at informal resolution which satisfies the ‘reasonable and good faith attempt’ standard depends upon the circumstances.” (Obregon v. Superior Court (1998) 67 Cal.App.4th 424, 431.) Relevant factors a court may consider in determining whether a reasonable and good faith attempt was made include “[t]he history of the litigation, the nature of the interaction with counsel, the nature of the issues, the prospects for success and other similar factors.” (Ibid.)

Plaintiff’s counsel attests that she sent a meet-and-confer letter to Defendants’ counsel on February 17, 2026, requesting further responses to the interrogatories and outlining the grounds for the request. (Asiryan Decl., ¶ 5.) On March 3, 2026, Defendants’ counsel requested an additional week to respond to Plaintiff’s meet-and-confer letter. (Id., Exh. D.) On March 9, 2026, Defendants’ counsel sent correspondence to Plaintiff’s counsel regarding Magic Mountain’s own discovery requests. (Id., ¶ 7.) The next day, on March 10, 2026, Magic Mountain filed three motions to compel further responses to those requests. (Id., ¶ 8.) Defendants’ counsel never responded substantively to Plaintiff’s meet-and-confer correspondence.

Magic Mountain contends that the Motion should be denied as procedurally deficient because: (1) Plaintiff’s counsel did not attempt to meet in person, by telephone, or via video conference, and (2) Plaintiff’s meet-and-confer declaration does not include any reference to the retention of a certified shorthand reporter as required by Code of Civil Procedure section 2016.040. (Opp’n, at p. 2.)

Magic Mountain is correct that written correspondence does not generally satisfy the in-person or telephonic meet-and-confer requirement of the Discovery Act and that the Act now requires parties to declare whether they met and conferred regarding the retention of a certified shorthand reporter. (Code Civ. Proc., § 2016.040, subd. (b).) However, the Court does not find the noted deficiencies to be sufficient to warrant outright denial of the Motion. A categorical denial of discovery due to insufficient meet and confer is “reserved for cases of clear intent to burden or harass, cases of clear flaunting of statutory responsibilities, cases of established track records of lack of good faith, and the like.” (Obregon, supra, 67 Cal.App.4th, at p. 434.) And failure to include a statement concerning whether the parties discussed the retention of a reporter for the hearing is a

technical defect that does not bear on the adequacy of meet-and-confer efforts or the substance of the discovery at issue.

(3)

Separate Statement

“Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement. The motions that require a separate statement include a motion ... (2) To compel further responses to interrogatories.” (Cal. Rules of Court, Rule 3.1345, subd. (a).) The separate statement must “provide[] all information necessary to understand ... all the responses ... that are at issue” and “be full and complete so that no person is required to review any other document in order to determine the full request and the full response.” (Id., Rule 3.1345, subd. (c).)

Plaintiff has filed a separate statement concurrently with the Motion, identifying each response at issue, stating the text of both the interrogatory and response, and providing reasons for compelling further response. The Court thus finds that Plaintiff has complied with the separate statement requirement.

B.

Motion to Compel Further Responses to Special Interrogatories, Set One

The responding party must respond “in writing under oath separately to each interrogatory by” answering the substance of the interrogatory, exercising an option to produce writings, or objecting. (Code Civ. Proc., § 2030.210, subd. (a).) “Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits.” (Code Civ. Proc., § 2030.220, subd. (a).) “If an interrogatory cannot be answered completely, it shall be answered to the extent possible.” (Code Civ. Proc., § 2030.220, subd. (b).) “If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.” (Code Civ. Proc., § 2030.220, subd. (c).)

“As a general matter, the statutory scheme imposes no obligation on a party propounding interrogatories to establish good cause or prove up the merits of any underlying claims.” (Williams v. Superior Court (2017) 3 Cal.5th 531, 550.) A litigant “is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.” (Id., at p. 541, citing West Pico Furniture Co. v. Superior Court (1961) 56 Cal.2d 407, 422.)

Plaintiff asserts that Magic Mountain served only boilerplate objections to every one of Plaintiff’s special interrogatories, providing no substantive responses at all. (Mot., at p. 6.) Upon review of Magic Mountain’s response, it consists of a preliminary statement and two paragraphs of objections to all interrogatories. (Asiryan Decl., Exh. B.) The Court agrees with Plaintiff that the objections are asserted in generalized and boilerplate fashion and fail to respond separately to each interrogatory as required by the Discovery Act. Magic Mountain’s response is accordingly not code-compliant, and further response is warranted.

In Opposition, Magic Mountain acknowledges that it served objections-only responses to the interrogatories, stating that it was gathering the necessary information and documents to respond to Plaintiff’s discovery and “always intended on serving [substantive] responses.” (Opp’n, at p. 2.) Magic Mountain indicates that it “anticipates serving further responses before the hearing date,” and that service of the further response will render the Motion moot. (Ibid.)

There is no indication that Magic Mountain has, in fact, served substantive responses that comply with the Discovery Act, despite more than six months elapsing since the objections were served. The Code accordingly finds that the Motion has not been rendered moot.

Based on the foregoing, the Court GRANTS the Motion.

C.

Monetary Sanctions

“The court may impose a monetary sanction and order that one engaging in the misuse of the discovery process ... pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc. § 2023.030, subd. (a).) Misuse of the discovery process includes making an evasive response to discovery. (Id., § 2023.010, subd. (f).)

“The court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)

Magic Mountain contends that sanctions would be unjust because of Plaintiff's unwillingness to meet and confer. (Opp'n, at p. 3.) The parties present conflicting information regarding meet-and-confer communications between counsel prior to the Motion being filed. Plaintiff's counsel submits an email she received from Defendants' counsel on March 3, 2026, requesting an additional week to respond to Plaintiff's meet-and-confer letter. (Asiryan Decl., Exh. D.) Plaintiff's counsel attests that she granted the extension. (Id., ¶ 6.) Magic Mountain contends in Opposition that the request was made on March 10, 2026, and Plaintiff's counsel did not answer the request. (Opp'n, at p. 3.)

In their Joint Status Report, filed on June 29, 2026, the parties indicate that Plaintiff's counsel reached out to Defendants' counsel to schedule a remote meet-and-confer conference pursuant to the Court's April 8, 2026 order to meet and confer, but that Defendants' counsel did not respond. (Joint Status Report, at p. 2.) The parties further indicate that Plaintiff's counsel sought to remain on Zoom conference after taking the deposition of Defendants' PMQ, but Defendants' counsel declined. (Ibid.)

The purpose of the meet-and-confer requirement is to encourage parties to resolve their differences informally without the necessity of a formal court order. (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1293.) Plaintiff's subsequent efforts to meet and confer, combined with the fact that, as of the filing of the Opposition, Magic Mountain has not served further responses to Plaintiff's discovery, demonstrate that additional communications by Plaintiff's counsel would not have rendered motion

practice unnecessary. The Court thus disagrees with Magic Mountain that circumstances would render the imposition of sanctions unjust.

The Court notes that the Motion requests sanctions based on counsel's hourly rate of \$350.00, but the declaration of Plaintiff's counsel only sets forth facts supporting an hourly rate of \$300.00, requesting total fees and costs in the amount of \$1,260.00. (Mot., at p. 8; Asiryan Decl., ¶ 12.) The Court's award is limited to the amount supported by evidence. Plaintiff's counsel attests that she spent two hours preparing the Motion and expects to spend one hour preparing any reply papers and one hour attending the hearing. (Ibid.) Plaintiff also seeks recovery of the \$60 fee for filing the Motion. The Court finds the hourly rate of \$300 to be reasonable. However, given that no reply papers were filed and the Motion is substantially similar to Plaintiff's motion to compel further responses to her form interrogatories, which has already been heard, the Court finds the total reasonable award to be \$510.00 (0.5 hours for preparation of the Motion and one hour for appearance at the hearing, plus the \$60.00 filing fee).

The request for sanctions is thus GRANTED
IN PART.

CONCLUSION

Plaintiff Maria Guadalupe Luna's motion to compel Defendant Magic Mountain LLC to further respond to Plaintiff's Special Interrogatories, Set One is GRANTED. Magic Mountain LLC is ordered to serve verified further responses to Plaintiff's Special Interrogatories, Set One within 30 days.

Plaintiff's request for monetary sanctions is GRANTED IN PART. Defendant Magic Mountain LLC and its counsel of record are ordered to pay \$510.00, jointly and severally, to Plaintiff's counsel within 30 days.

Moving party to give notice.